

CHAPTER 56

An Act to extend jurisdiction under the Guardianship of Infants Acts, 1886 and 1925, to certain county courts and courts of summary jurisdiction; to provide for increasing the sums that may be awarded by courts of summary jurisdiction under the said Acts or under section seven of the Summary Jurisdiction (Married Women) Act, 1895, towards the maintenance of children, for enabling payments of maintenance under the said section seven to be continued in respect of children over the age of sixteen engaged in a course of education or training, and for requiring certain payments of maintenance in respect of children under the said Acts or under the said section seven to be paid without deduction of income tax; and for purposes connected with the matters aforesaid.

[1st August 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the following provisions of this section, the expression “the court”, for the purposes of the Guardianship of Infants Acts, 1886 and 1925, means in England and Wales the High Court or the county court of the district, or a court of summary jurisdiction having jurisdiction in the place, in which the respondent or any of the respondents or the applicant or the infant to whom the application relates resides; and the foregoing definition shall have effect in substitution for the definition contained in section nine of the Guardianship of Infants Act, 1886 (so far as that definition relates to England and Wales) as amended by subsection (1) of section seven of the Guardianship of Infants Act, 1925.

(2) Notwithstanding anything in the preceding subsection, a county court or court of summary jurisdiction in England or Wales shall not have jurisdiction under the said Acts in any case where the respondent or any of the respondents resides in Scotland or Northern Ireland—

- (a) except in so far as such jurisdiction may be exercisable by virtue of the Maintenance Orders Act, 1950; or
- (b) unless a summons or other originating process can be served and is served on the respondent or, as the case may be, all the respondents in England or Wales.

(3) The proviso to subsection (1) of section seven of the Guardianship of Infants Act, 1925 (which imposes certain limitations on the exercise of jurisdiction by courts of summary jurisdiction) shall remain in force and apply in relation to any court of summary jurisdiction exercising jurisdiction under the Guardianship of Infants Acts, 1886 and 1925, but paragraph (c) of that proviso (which limits the sums that may be ordered to be paid towards the maintenance of any infant to twenty shillings a week) shall have effect with the substitution for the reference to twenty shillings of a reference to thirty shillings.

Increase of maintenance for infants under Summary Jurisdiction (Separation and Maintenance) Acts, 1895 to 1949, and continuance of such maintenance after sixteen.

2.—(1) Paragraph (b) of the proviso to section seven of the Summary Jurisdiction (Married Women) Act, 1895, (which, as amended by section two of the Summary Jurisdiction (Separation and Maintenance) Act, 1925, empowers the court to order the payment of sums for the maintenance of children not exceeding ten shillings a week for each child) shall have effect with the substitution for the reference to ten shillings of a reference to thirty shillings.

(2) Section two of the Married Women (Maintenance) Act, 1949 (which empowers the court to vary an order made by virtue of section one of the Married Women (Maintenance) Act, 1920, so as to enable payments for the maintenance of a child to be continued after the age of sixteen but not after the age of twenty-one if the child is engaged in a course of education or training) shall have effect as if the reference to such an order as aforesaid included a reference to an order made by virtue of paragraph (b) of the proviso to the said section seven.

Extension of s. 25 of Finance Act, 1944.

3. In relation to payments pursuant to any order made under the Guardianship of Infants Acts, 1886 and 1925, or any order made under paragraph (b) of the proviso to section seven of the Summary Jurisdiction (Married Women) Act, 1895, section twenty-five of the Finance Act, 1944, (which requires among other things that certain payments for the benefit, maintenance or education of a person under sixteen years of age which do not exceed one pound a week shall be made without deduction of tax) shall have effect as if in subsection (1) of that section for the words "sixteen years of age" there were substituted the words "twenty-one years of age" and for the words "one pound" there were substituted the words "thirty shillings".

Transitional provisions.

4.—(1) Any order made before the commencement of this Act under the Guardianship of Infants Acts, 1886 and 1925, by a court on which jurisdiction under those Acts is conferred by subsection (1) of section one of this Act, except an order which has been quashed or discharged before the commencement of

this Act for want of jurisdiction, shall have effect, and be deemed always to have had effect, as if that jurisdiction had been conferred at the time when the order was made.

(2) Any order made by a court of summary jurisdiction under the Guardianship of Infants Acts, 1886 and 1925, before the commencement of this Act for the payment of any sum towards the maintenance of an infant, and any order made by virtue of paragraph (b) of the proviso to section seven of the Summary Jurisdiction (Married Women) Act, 1895, before the commencement of this Act, may be varied so as to include from the date of the variation of the order a provision for the payment of such increased sums as would have been lawful if the order had been made after the commencement of this Act.

5.—(1) This Act may be cited as the Guardianship and Maintenance of Infants Act, 1951. Short title,
interpretation
and extent.

(2) Any reference in this Act to any other enactment shall be construed as a reference to that enactment as amended by any subsequent enactment, including this Act.

(3) This Act, except section three thereof, shall not extend to Scotland.

(4) This Act shall not extend to Northern Ireland.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Guardianship of Infants Act, 1886	49 & 50 Vict. c. 27.
Summary Jurisdiction (Married Women) Act, 1895	58 & 59 Vict. c. 39.
Married Women (Maintenance) Act, 1920	10 & 11 Geo. 5. c. 63.
Guardianship of Infants Act, 1925	15 & 16 Geo. 5. c. 45.
Summary Jurisdiction (Separation and Maintenance) Act, 1925	15 & 16 Geo. 5. c. 51.
Finance Act, 1944	7 & 8 Geo. 6. c. 23.
Married Women (Maintenance) Act, 1949	12, 13 & 14 Geo. 6. c. 99.
Maintenance Orders Act, 1950	14 Geo. 6. c. 37.

CHAPTER 57

An Act to amend section forty-seven of the National Assistance Act, 1948 [1st August 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled and by the authority of the same, as follows:—

1.—(1) An order under subsection (3) of section forty-seven of the National Assistance Act, 1948, for the removal of any such person as is mentioned in subsection (1) of that section may be made without the notice required by subsection (7) of that Amendment
of 11 & 12
Geo. 6. c. 29.
s. 47.